

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH & BEYOND INC. v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

**COMPLAINANT’S MOTION TO FILE UNDER SEAL COMPLAINANT’S
OPENING BRIEF, PROPOSED FINDINGS OF FACT AND CONCLUSIONS OF LAW,
AND APPENDIX TO THE OPENING BRIEF**

Pursuant to Rule 5 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (the “Rules”), 46 C.F.R. Section 502.5, and the Protective Order entered by the Presiding Officer in this case on July 28, 2023, see Dkt. 20 (the “Protective Order”), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”), by and through its undersigned attorneys, respectfully moves for an order permitting Complainant to file under seal with the Presiding Officer unredacted copies of its Opening Brief (“Brief”) Proposed Findings of Fact and Conclusions of Law (“FOF/COL”), and Appendix to the Opening Brief (“Appendix”, together with the Brief and FOF/COL, the “Subject Filings”), filed contemporaneously herewith, and file on the public docket of this case redacted copies of the Subject Filings.

LEGAL FRAMEWORK

The Subject Filings are being filed contemporaneously with the instant motion pursuant to the Presiding Officer’s August 23, 2024 Scheduling Order in this action.

Under Commission Rule 5(b), a motion for confidential treatment should specify the information in a filing for which protection is sought and show good cause by demonstrating “the

information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii).” 46 C.F.R. Section 502.5(b). The Protective Order agreed to by the Parties and entered by the Presiding Officer in this case establishes the standard for confidentiality protection of documents produced in discovery in this case. *See* Protective Order Section 1.

Section 2 of the Protective Order provides in relevant part that:

A party (or producing non-party) may designate as “Confidential” any information that is ***commercially sensitive*** and is not publicly known, including information provided by third parties to the producing party or non-party with the expectation that the information remain confidential (“Confidential Information”). (emphasis added.)

Section 3 of the Protective Order provides in relevant part that:

A party (or producing non-party) may designate as [AEO] any information or material whose ***disclosure to anyone other than outside counsel has a substantial probability of jeopardizing the producing party or non-party’s competitive business interests*** or the competitive or privacy interests of the producing party or nonparty’s suppliers, service providers, customers or clients, or of an individual party in this proceeding. (emphasis added.)

Section 4 of the Protective Order provides in relevant part that:

[I]n the case of information contained or revealed in a deposition, whether in a question, answer or exhibit, ***by noting the designation on the record at the time of the deposition, or within ten business days after receipt of the deposition transcript. The transcript pages and any associated documents containing confidential information shall be bound separately*** and shall contain on each page, including the cover page, an appropriate notation identifying it as “Confidential” or “Attorneys Only” / “AEO”.

On December 11, 2024, the Presiding Officer issued an Order Denying Respondents’ Motion To Seal the Motion To Strike, emphasizing that requests to seal confidential material should be carefully and narrowly drawn. (12/11/2024 Order at 3.)

REQUEST FOR CONFIDENTIAL TREATMENT AND LEAVE TO FILE UNDER SEAL

Complainant's Subject Filings filed herewith contain and refer to material (the "Subject Materials") designated by Complainant (the "BBBY Materials") or Respondents (the "OOCL Materials") as Confidential or Attorneys Eyes Only ("AEO") pursuant to the Protective Order.¹

OOCL Materials: Respondents designated the OOCL Materials as either Confidential or AEO. Thus, this motion is necessitated by the requirements of the Protective Order, which mandates each party file under seal information designated as Confidential or AEO by the other party, absent agreement to the contrary.

On December 12, 2024, in an effort to narrow the scope of redactions and comply with the Presiding Officer's Order Denying Respondents' Motion to Seal the Motion to Strike, dated December 11, 2024, Complainant sent to Respondents via email a chart listing the OOCL Materials referenced in the Subject Filings (the "OOCL Confidentiality Chart"), *see* Declaration of J. Lee Hill Ex. A, dated December 13, 2024, and filed contemporaneously herewith, and asked Respondents:

- (a) whether Respondents consent to waive the confidentiality designations to any of the OOCL materials;
- (b) if OOCL maintains such designations, whether OOCL asserts that such designations apply to the entirety of the respective documents or instead only portions thereof; and
- (c) if OOCL maintains such designations to only portions of the documents, which portions. *See* Hill Decl. ¶ 4.

In response, Respondents stated that it was not feasible for Respondents to determine their answers to the foregoing questions (a-c) before Complainant's filing of the Subject Filings. *See* Hill Decl. ¶ 6. Instead, Respondents requested that Complainant include in this motion a statement

¹ The Table of Contents to Complainant's Appendix to the Opening Brief identifies the Subject Materials by highlighting (1) with blue the Complainant Confidential Information and (2) with yellow the Respondents Confidential Information. *See* Appendix to the Opening Brief at 1 n.1.

that Complainant conferred with Respondents regarding the instant motion and Respondents request more time from the Presiding Officer in order for Respondents to answer Complainant's questions (a-c) as to the OOCL Materials. *See* Hill Decl. ¶ 7. Respondents did not otherwise indicate that they oppose the Motion. *See* Hill Decl. ¶ 8.

BBBY Materials: The BBBY Materials consist of the following:

Appendix Page Range	Description	Classification Requested for	Basis for Confidentiality Request
Ex. 328 (APP-3357)	Excel spreadsheet	Entirety	Spreadsheet containing non-public commercially sensitive pricing data of non-party entities
Ex. 329 (APP-3358)	Excel spreadsheet	Entirety	Spreadsheet containing non-public commercially sensitive pricing data of non-party entities
Ex. 330 (APP-3359)	Excel spreadsheet	Entirety	Spreadsheet containing non-public commercially sensitive pricing data of non-party entities
Ex. 381 (APP-3764)	Appendices A through B.	Entirety	Expert report citing material designated by OOCL as Confidential or Attorneys' Eyes Only pursuant to the Protective Order, and containing non-public commercially sensitive pricing data involving non-party entities
Ex. 401 (APP-4008)	Excel spreadsheet	Entirety	Spreadsheet containing non-public commercially sensitive pricing data, concerning not only ocean freight costs but also merchandise costs, including commercially sensitive pricing data of non-party entities
Ex. 402 (APP-4009)	Excel spreadsheet	Entirety	Spreadsheet containing non-public commercially sensitive pricing data, concerning not only ocean freight costs but also merchandise costs, including commercially sensitive pricing data of non-party entities

Good cause exists for the confidential treatment of the Complainant Materials. The Complainant Materials are subject to the Protective Order in this action and have been designated by Complainant as either Confidential or AEO pursuant to that Protective Order. Complainant

believes that the nature and content of each of the materials constituting the Complainant Materials is consistent with its respective confidentiality designation under the Protective Order. *See Hill Decl.* ¶ 9. Non-public commercially sensitive pricing data, along with cost data concerning not only ocean freight costs but also merchandise costs and supplier pricing, are confidential business information and are subject to Complainant's confidentiality obligations under their respective contractual agreements.

Notably, the Subject Filings cite many other documents that Complainant originally designated either Confidential or AEO pursuant to the Protective Order. In an effort to comply with the strict, narrow requirements for filing papers under seal, Complainant has withdrawn its designations over the vast majority of these documents for purposes of the Subject Filings. These documents, which appear in the public Appendix filed herewith, continue to bear their original Confidential or AEO stamps in the form they were originally produced, but are nonetheless part of the public record. The only documents that Complainant seeks to maintain confidentiality over are (1) documents that contain confidential pricing information from non-parties, including OOCL's rival ocean carriers and BBY's suppliers, and (2) documents that cite information that Respondents have designated as confidential, namely BBY's expert report, which cites discovery material produced by both sides.

In an effort to enable the Presiding Officer to distinguish BBY's proposed redactions from redactions necessitated by OOCL's confidentiality designations, the nonpublic version of the Subject Filings contain different colors of highlighting: yellow for redactions involving the OOCL Materials. And blue for redactions involving the BBY Materials.

CONCLUSION

Consistent with the requirements of the Protective Order in this case and for good cause shown, Complainant seeks by the instant motion leave to file its Subject Filings under seal.

Dated: December 13, 2024

Respectfully submitted,

HUTH REYNOLDS LLP

/s/ J. Lee Hill

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Certificate of Service

I hereby certify that I have this day caused to be served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing a copy to their counsel of record listed below:

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Dated: December 13, 2024

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